

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

ANDERSON LANTIGUA,

Plaintiff,

-against-

THE CITY OF NEW YORK, ALEXIS SOTO, CARLOS
RIVERA, JONATHAN KATZ, MUHAMMAD
ABUHAICAL, ANNETTE FRANCESQUINI,

Defendants.

SUMMONS

Index No.:

The basis of venue is:
Location of the incidentPlaintiff designates Bronx
County as the place of trial.**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 14, 2023

Yours, etc.,

Elliot Shields

ELLIOT DOLBY SHIELDS
Attorney for Plaintiff
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(585) 749-2089

CITY OF NEW YORK CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
P.O. ALEXIS SOTO (Shield No 13519), 19th Precinct, 153 East 67th Street, New York, NY 10065
P.O. CARLOS RIVERA (Shield No 20388), One Police Plaza, New York, NY 10038
P.O. JONATHAN KATZ, Manhattan Child Abuse Squad, 1753 Park Ave., New York, NY 10035
P.O. MUHAMMAD ABUHAICAL, One Police Plaza, New York, NY 10038
DETECTIVE ANNETTE FRANCESQUINI, 1086 Simpson Street, Bronx, NY 10459

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RIVERA, JONATHAN KATZ, MUHAMMAD
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Defendants.

**VERIFIED
COMPLAINT and
DEMAND FOR A
JURY TRIAL**

Index No.:

Plaintiff **ANDERSON LANTIGUA**, by his attorneys, ROTH & ROTH, LLP, as and for their Verified Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action, pursuant to 42 U.S.C. §§ 1983 and 1988, and the laws and Constitution of the State of New York, seeking monetary damages for Plaintiff, ANDERSON LANTIGUA, arising from his malicious prosecution and unconstitutionally obtained conviction for robbery, and his nearly three-year imprisonment, caused by the misconduct of individual New York City Police Department (“NYPD” or “Police Department”) officers. This action is also brought against THE CITY OF NEW YORK (“the City”), which is liable for the misconduct of the NYPD officers under *respondeat superior*.

PARTIES

2. Plaintiff, ANDERSON LANTIGUA, is a citizen of the United States and a resident of the County of the Bronx, State of New York.

3. Defendant THE CITY OF NEW YORK (“CITY”) is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant CITY assumes the risks incidental to the maintenance of a

police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

4. NYPD Officer (“P.O.”) ALEXIS SOTO (Shield No 13519), P.O. CARLOS RIVERA (Shield No 20388), P.O. JONATHAN KATZ, P.O. MUHAMMAD ABUHAICAL, DETECTIVE ANNETTE FRANCESQUINI, and JOHN DOES # 1–10 (hereinafter “individual NYPD defendants” or “defendant NYPD officers”) are and were at all times relevant herein, officers, employees and agents of the NYPD.

5. The individual NYPD defendants are hereinafter collectively referred to as “defendant police officers.”

6. The defendant police officers are being sued in their individual and official capacities.

7. At all times relevant herein, the defendant police officers were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

8. The acts of the defendant police officers hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiffs’ rights.

9. At all relevant times, the defendant police officers were engaged in joint ventures, assisting each other in performing the various actions described herein and lending their physical presence in support and the authority of their offices to one another.

STATEMENT OF FACTS

10. On May 15, 2010, plaintiff ANDERSON LANTIGUA was a licensed Taxi and Limousine driver and was lawfully working as a driver for hire.

11. On May 15, 2010 at approximately 8:00 a.m., three individuals—Ricardo Potter, Freddie Diaz, and Carlos Alvarez—hired Mr. Lantigua to drive them for the day.

12. Potter, Diaz and Alvarez directed Mr. Lantigua to make several stops, and instructed him wait for them as they all got out of the car. After some time, they returned to the car and directed him to a new location.

13. At approximately 10:00 a.m., Potter, Diaz and Alvarez directed Mr. Lantigua to drop them off at a building in the vicinity of 149th Street in the Bronx, and to come back and pick them up in approximately one hour.

14. Mr. Lantigua returned at approximately 11:00 a.m. and Potter, Diaz and Alvarez got back into his car and directed Mr. Lantigua to a new location.

15. As Mr. Lantigua was driving his vehicle Bruckner Boulevard, he was rear ended by another vehicle, which then attempted to flee the scene of the crash.

16. After the other car fled the scene, Mr. Lantigua proceeded to drive in the same direction until he had to stop due to traffic.

17. As Mr. Lantigua was stopped in traffic on Bruckner Boulevard in the Bronx, Potter, Diaz and Alvarez suddenly got out of the car; Mr. Lantigua did not exit the vehicle, but remained in the driver's seat.

18. Mr. Lantigua could not see where Potter, Diaz and Alvarez went or what they did when they exited his vehicle.

19. A short time later, Potter, Diaz and Alvarez returned to the vehicle, and directed Mr. Lantigua to make a u-turn in the vicinity of Bruckner Boulevard and Willis Avenue, Bronx, NY.

20. Mr. Lantigua made the u-turn and began driving the opposite direction on Bruckner Boulevard.

21. At that time, defendant Jonathan Katz was driving three officers—defendants Alexis Soto, Muhammad Abuhaikal and Carlos Rivera—in a marked police car, traveling northbound on Bruckner Boulevard, waiting at the light at Alexander Avenue.

22. The officers saw the van make the u-turn and began to follow it to stop it.

23. As they proceeded, they were flagged down by the hit and run driver, who informed the officers that three men had just attempted to car jack them.

24. After driving approximately half a block, Katz cut across traffic, pulled in front of Mr. Lantigua's van, and stopped him. The victim parked behind Mr. Lantigua's van.

25. Suddenly, Katz, Soto, Abuhaikal and Rivera approached the vehicle with their guns drawn and ordered Mr. Lantigua and the others to exit the vehicle. They immediately placed handcuffs on Mr. Lantigua's wrists and arrested him.

26. At the scene, the victim identified Potter, Diaz and Alvarez as the individuals who were involved in the alleged robbery, but he never indicated to Katz, Soto, Abuhaikal and Rivera that Mr. Lantigua was involved in the robbery in any way. He only identified Mr. Lantigua as the driver of the vehicle.

27. At the scene, the Katz, Soto, Abuhaikal and Rivera searched Mr. Lantigua's vehicle, and located his TLC license, his two-way radio to correspond with taxi dispatch, his credit card reader, his paper credit card receipt machine, and a receipt book.

28. Defendant Soto determined that Mr. Lantigua worked as a licensed taxi driver.

29. Mr. Lantigua and the three passengers were then placed in an NYPD van and transported to the PSA 7 precinct.

30. When they arrived at the precinct, Mr. Lantigua was placed in a cell by himself, and his three passengers were placed together in a different cell.

31. Upon information and belief, when he was at the precinct, the three passengers informed the Katz, Soto, Abuhaikal and Rivera that Mr. Lantigua was completely innocent had simply been hired to drive them around.

32. At the precinct, Mr. Lantigua also informed the Katz, Soto, Abuhaikal and Rivera that he was completely innocent, that he had never met Potter, Diaz and Alvarez prior to them hiring him to drive them that day, and that he was simply working as a taxi driver when he was stopped and arrested.

33. While at the precinct, defendant Soto falsely informed the investigating detective, Detective Francesquini, that she had observed Mr. Lantigua “in a vehicle with a knife and he was pointing the knife at the victim.” Detective Francesquini recorded Soto’s statement in an official investigative report, which, upon information and belief, largely formed the basis for the prosecution of Mr. Lantigua. Soto later admitted at trial that this statement was false.

34. Detective Francesquini knew or should have known that Soto’s statement was false, because it was not corroborated by the other defendants who stopped Mr. Lantigua—Katz, Abuhaikal and Rivera—nor was it corroborated by the victim or any other witnesses.

35. Upon information and belief, at the PSA 7 precinct, Francesquini informed plaintiff and/or his passengers that there was no “carjacking,” but it was up to Soto to decide whether or not to press charges against plaintiff and his passengers.

36. Nevertheless, despite lacking reasonable or probable cause to charge Mr. Lantigua with any crime and based on the false statement by Soto that she had observed Mr. Lantigua “in a vehicle with a knife and he was pointing the knife at the victim,” Soto falsified police paperwork that charged Mr. Lantigua with numerous crimes, including Menacing in the Second Degree, PL §120.14(01); Criminal Possession of a Weapon in the Fourth Degree, PL § 265.01(02); Robbery in the Third Degree, PL 160.05(00); and Robbery in the First Degree, PL § 160.15(03).

37. Soto and the other defendant officers then forwarded the false paperwork to the Bronx District Attorney’s office to initiate the malicious prosecution of Mr. Lantigua.

38. Francesquini failed to intervene to stop and/or prevent Soto from filing criminal charges against plaintiff that she knew were false and/or lacked any supporting evidence.

39. Mr. Lantigua and the passengers—Potter, Diaz and Alvarez—were transported to Bronx Criminal Court, where they were detained for approximately 12 hours before they were arraigned.

40. At arraignment, on May 16, 2010, Mr. Lantigua pleaded not guilty, and the judge released him on his own recognizance.

41. Upon information and belief, at arraignment, Potter, Diaz and Alvarez also pleaded not guilty, but the judge set bail and remanded them to DOCCS custody.

42. During the over three years between arraignment and the first trial, the prosecution lacked any evidence whatsoever that Mr. Lantigua was involved in the alleged robbery committed by Potter, Diaz and Alvarez in any way, other than Soto's false statement that she had observed Mr. Lantigua "in a vehicle with a knife and he was pointing the knife at the victim."

43. Prior to trial, the prosecution offered the exceptionally lenient offer of a conditional discharge; but Mr. Lantigua refused to plead guilty and maintained his innocence.

44. Despite the seriousness of the charged crimes, the trial court allowed Mr. Lantigua to remain at liberty. In keeping with his unblemished, law-abiding record, Mr. Lantigua duly appeared at every court appearance.

45. Consistent with the fact that the prosecution's proof against Mr. Lantigua was inadequate, the case unfolded in a tortured manner. The suppression hearing was repeatedly reopened, in part to shore up the prosecution's case.

46. At the first trial, the prosecution made a glaring evidentiary faux-pas, and the court abruptly declared a mistrial and terminated the proceedings.

47. The trial court denied defendants' request for a mistrial with prejudice, and instead granted a mistrial without prejudice, which violated Mr. Lantigua's constitutional right to double jeopardy.

48. At the second trial, the victim testified that he never saw Mr. Lantigua do anything other than drive the vehicle; he didn't even see Mr. Lantigua interact with Potter, Diaz or Alvarez, or speak to the three men.

49. At the second trial, the victim did not testify that he ever saw Mr. Lantigua “in a vehicle with a knife and he was pointing the knife at [him]”, as Soto had falsely told Detective Francesquini, which formed the basis of the prosecution against him.

50. At the second trial, on cross examination, defendant Soto admitted that her statement to Detective Francesquini that she had observed Mr. Lantigua “in a vehicle with a knife and he was pointing the knife at the victim” was false.

51. During deliberations, the jury twice asked the court to clarify its instruction on the charged crimes, including on accessorial liability. The jury also requested the list of items that Officer Soto had recovered from the white minivan. The jury acquitted Mr. Lantigua of robbery in the first degree, convicted him of robbery in the second degree, and acquitted him of endangering the welfare of a child.

52. Prior to sentencing, defense counsel moved to set aside the verdict on the ground that it was based on legally insufficient evidence. The Court denied the motion, finding that the evidence was legally sufficient, but stated: “this case will be reviewed by a higher Court, and I invite that review.”

53. Ultimately, the court imposed the minimum sentence of three and a half years of imprisonment and two and a half years of post-release supervision.

54. Mr. Lantigua completed the sentence prior to the criminal appeal.

55. Mr. Lantigua filed a direct appeal, arguing that the conviction should be overturned (1) because it was against the weight of the evidence, (2) because Double Jeopardy precluded the second trial, (3) the trial court erred in precluding Mr. Lantigua from challenging the search of his vehicle, and (4) the trial court erred in precluding defense counsel from cross examining defendant Soto about her prior misconduct.

56. By a decision and order dated October 19, 2021, the Appellate Division, First Department reversed the conviction, holding that the second trial violated the constitutional prohibitions against double jeopardy.

57. The prosecution then filed an application for leave to appeal to the Court of Appeals, which was denied by order dated February 28, 2022.

58. Upon information and belief, none of the defendant NYPD officers have been disciplined as a result of their unlawful arrest, fabrication of evidence and malicious prosecution of the plaintiff.

59. During all the foregoing wrongful acts committed against plaintiff, not one of the defendant NYPD officers or supervisory defendants intervened on plaintiff's behalf to prevent the violation of his constitutional rights, despite having realistic opportunities to do so.

60. Because of the foregoing, plaintiff was wrongfully convicted and incarcerated for three and a half years, and sustained, *inter alia*, mental injuries, emotional distress, embarrassment, humiliation, lost income, loss of liberty, and deprivation of his common law and constitutional rights.

61. Because of the foregoing, plaintiff demands judgment against defendants in an amount of money to be determined at trial.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

(42 U.S.C. § 1983; Malicious Prosecution Under Federal Law and Deprivation of Liberty Under the Fourth, Fifth, and Fourteenth Amendments; All Individual Defendants)

62. All preceding and subsequent paragraphs are incorporated by reference.

63. The Individual Defendants, acting in concert with each other, knowingly, willfully, and deliberately initiated, continued, or caused the initiation or continuation of, criminal proceedings against Plaintiff, and his loss of liberty.

64. The criminal proceedings terminated in Plaintiff's favor.

65. There was no probable cause for the commencement or the continuation of the criminal proceedings, and the Individual Defendants knew this.

66. The individual Defendants acted with malice.

67. Individual Defendants' actions were willful, malicious, oppressive, and/or reckless, and were of such a nature that punitive damages should be imposed.

68. By virtue of the foregoing, the Individual Defendants are liable under 42 U.S.C. § 1983, for the violation of Plaintiff's rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and for all resultant damages.

SECOND CLAIM FOR RELIEF

(42 U.S.C. § 1983; Due Process and Deprivation of Liberty Under the Fourth, Fifth, and Fourteenth Amendments; All Individual Defendants)

69. All preceding and subsequent paragraphs are incorporated by reference.

70. By the actions described above, each and all of the Individual Defendants, jointly and severally, acting in concert with each other and with additional persons for whose acts they are liable, initiated, continued and/or caused the initiation or continuation of, criminal proceedings against Plaintiff.

71. Plaintiff had a right to be free from continued detention.

72. Plaintiff's continued detention resulted from Defendants' suppression of exculpatory evidence.

73. Defendants' conduct in suppressing exculpatory evidence shocked the conscience.

74. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.

75. Individual Defendants' actions were willful, malicious, oppressive, and/or reckless, and was of such a nature that punitive damages should be imposed.

76. By virtue of the foregoing, the Individual Defendants are liable under 42 U.S.C. § 1983, for the violation of Plaintiff's rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and for all resultant damages.

77. As a direct and proximate result of these Defendants' actions, Mr. Lantigua spent three and a half years wrongfully convicted and imprisoned and suffered the other grievous and continuing damages set forth above.

THIRD CLAIM FOR RELIEF**(42 U.S.C. § 1983; Due Process, Denial of Fair Trial By Fabricating and Suppressing Evidence and Deprivation of Liberty Under the Fourth, Fifth, and Fourteenth Amendments; Soto and Francesquini)**

78. All preceding and subsequent paragraphs are incorporated by reference.

79. Defendant Soto, acting individually and in concert with the other defendants, deprived Mr. Lantigua of his clearly established constitutional right under the Fourteenth Amendment of the United States Constitution, to a fair trial.

80. Specifically, defendants Soto deprived Mr. Lantigua of his right to a fair trial by: fabricating inculpatory evidence and falsely informing the investigating detective, Detective Francesquini, that she had observed Mr. Lantigua “in a vehicle with a knife and he was pointing the knife at the victim.” Soto admitted over three years later at the second trial that this statement was false.

81. By deliberately manufacturing false evidence and forwarding that fabricated evidence to prosecutors, these Defendants caused plaintiff to be detained, charged, prosecuted, and wrongfully convicted in violation of his rights pursuant to the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, to due process of law and to a fair trial, and are liable to Plaintiff under 42 U.S.C. § 1983, for compensatory and punitive damages.

82. These Defendants performed the above-described acts under color of state law, intentionally, with reckless disregard for the truth, and with deliberate indifference to Mr. Lantigua’s clearly established constitutional right to be free from deprivation of liberty without due process of law.

83. Mr. Lantigua is completely innocent. The prosecution finally terminated in his favor and without a conviction when the Court of Appeals denied the prosecution’s application for leave to appeal and upheld the reversal of his conviction on February 28, 2022.

84. By virtue of the foregoing, the Individual Defendants are liable under 42 U.S.C. § 1983, for the violation of Plaintiff’s rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and for all resultant damages.

85. As a direct and proximate result of these Defendants' actions, Mr. Lantigua spent three and a half years wrongfully convicted and imprisoned and suffered the other grievous and continuing damages set forth above.

FOURTH CLAIM FOR RELIEF

(42 U.S.C. § 1983; Failure to Intercede; Katz, Abuhaikal, Rivera, Francesquini)

86. All preceding and subsequent paragraphs are incorporated by reference.

87. By their conduct and under color of state law, Katz, Abuhaikal, Rivera and Francesquini had opportunities to intercede on behalf of Mr. Lantigua to prevent his malicious prosecution and deprivation of liberty without due process of law, but, due to their intentional conduct and/or reckless or deliberate indifference, declined or refused to do so.

88. These Defendants' failures to intercede violated Mr. Lantigua's clearly established constitutional right to be free from malicious prosecution and not to be deprived of liberty without due process of law as guaranteed by the Fourth and Fourteenth Amendments. No reasonable police officer in or after 2010 would have believed that failing to intercede to prevent these Defendants from fabricating inculpatory evidence, withholding material exculpatory evidence, and causing Mr. Lantigua to be arrested and prosecuted without probable cause, was lawful.

89. Mr. Lantigua is completely innocent and played no role in the robbery. The prosecution finally terminated in his favor on February 28, 2022 when the Court of Appeals denied the prosecution's leave to appeal.

90. As a direct and proximate result of these defendants' actions, Mr. Lantigua spent more than three and a half years wrongfully convicted and imprisoned and suffered the other grievous and continuing damages set forth above.

FIFTH CLAIM FOR RELIEF

(N.Y.C Admin. Code §§ 8-801 to 8-807; All Defendants)

91. All preceding and subsequent paragraphs are incorporated by reference.

92. By the actions described above, each and all of the Defendants, jointly and severally, acting in concert with each other and with additional persons for whose acts they are

liable, initiated, continued and/or caused the initiation or continuation of criminal proceedings against Plaintiff.

93. Specifically, defendant Soto, acting in concert with the other defendants, fabricated official police reports in which she falsely claimed that she observed Mr. Lantigua “in a vehicle with a knife and he was pointing the knife at the victim,” and forwarded these false allegations to prosecutors, which formed the basis for initiating and continuing the prosecution against plaintiff.

94. Despite knowing that probable cause did not exist to prosecute Mr. Lantigua for the robbery, Soto and the other defendants intentionally, recklessly, and with malice caused Mr. Lantigua to be prosecuted and convicted for this crime. Furthermore, these Defendants intentionally concealed and misrepresented to prosecutors, grand jurors, and the trial court facts that further vitiated probable cause against Mr. Lantigua, including the fact that Soto concealed for over three years the fact that she lied to Detective Francesquini when she claimed that she had observed Mr. Lantigua “in a vehicle with a knife and he was pointing the knife at the victim.” Soto admitted at the second trial that this statement was false.

95. Mr. Lantigua is completely innocent. The prosecution finally terminated in his favor and without a conviction when the Court of Appeals denied the prosecution’s application for leave to appeal and upheld the reversal of his conviction on February 28, 2022.

96. The City of New York is liable as the employer of the Individual Defendants under New York City Administrative Code § 8-803(b).

97. Qualified immunity is no defense to this claim.

98. As a direct and proximate result of these Defendants’ actions, Mr. Lantigua spent more three and a half years wrongfully convicted and imprisoned and suffered the other grievous and continuing damages set forth above.

99. As a result of the above unconstitutional conduct, the Individual Defendants are liable for punitive damages.

SIXTH CLAIM FOR RELIEF**(New York State Constitution; Violation of Due Process Rights Under Article I § 6, Against the City Under *Respondeat Superior*)**

100. All preceding and subsequent paragraphs are incorporated by reference.

101. The conduct of Defendants Soto and the other defendants, described above, also violated Mr. Lantigua's rights under the New York State Constitution, Article I § 6 to due process of law.

102. Mr. Lantigua is completely innocent of the alleged robbery. The prosecution finally terminated in his favor when the Court of Appeals denied the prosecution's application for leave to appeal and upheld the reversal of his conviction on February 28, 2022.

103. As a direct and proximate result of these Defendants' actions, Mr. Lantigua spent three and a half years wrongfully convicted and imprisoned and suffered the other grievous and continuing damages set forth above.

104. Defendant City is liable under *respondeat superior* for the actions of its employees within the scope of their employment.

WHEREFORE, plaintiff ANDERSON LANTIGUA demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of compensatory damages, punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
June 15, 2023

Respectfully Submitted:

ROTH & ROTH, LLP

Elliot Shields

By: _____

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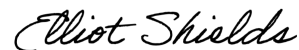
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DETECTIVE ANNETTE FRANCESQUINI, 1086 Simpson Street, Bronx, NY 10459

ATTORNEY'S VERIFICATION

ELLIOT DOLBY SHIELDS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am associated with Roth & Roth LLP, attorneys for plaintiffs herein, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
June 15, 2023



ELLIOT DOLBY SHIELDS